

Petitioner v. State of U.P. & Ors.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 8 December 2025 · Writ-C No. 11662 of 2025
· **Writ disposed of with liberty to avail clause 6.5 billing remedy.**

HEADNOTE

Connection on account 0135564356 having been restored after the writ was filed, a remaining dispute over a bill of Rs 3,325 was left to the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, on an application in the prescribed format with prescribed fees. Petition disposed of with liberty to that statutory remedy.

FACTUAL SUMMARY

The petitioner applied online for a new 1 kW commercial connection. After inspection alleged dues, he deposited Rs 2,270 on 12 July 2025, yet account 0135564356 was not installed or restored. An 8 September 2025 Sampooran Samadhan Diwas complaint went unanswered. The licensee billed Rs 3,325 for 312 units, which he disputes, and the house had no supply. The writ was filed on 19 November 2025; the licensee's counsel later stated the connection had been restored on 29 November 2025.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-objection-to-executive-engineer

HOLDING

Where the connection has already been restored after the writ was filed, a remaining billing dispute is to be raised before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, by an application in the prescribed format after paying the prescribed fees; the writ is disposed of with liberty to that statutory remedy. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 Connection on account 0135564356 having been restored after the writ was filed, a remaining dispute over a bill of Rs 3,325 was left to the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005, on an application in the prescribed format with prescribed fees.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILL OF RS 3,325 FOR 312 UNITS ON ACCOUNT 0135564356 WAS WRONG

Left to the Executive Engineer under clause 6.5 if an application is made in the prescribed format with prescribed fees.

¶ 1